

(*Id.* at p. 384.) In *Deveny*, the class plaintiffs asserted the defendant drug company failed to disclose adverse test results. In the original complaint, plaintiffs alleged that “[d]efendants withheld scientific and clinical knowledge that Esterom was not detected in the blood or urine of patients’ and that ‘[w]hen Plaintiffs discovered that Entropin had omitted to disclose material information concerning the absorption of Esterom, Plaintiffs contacted counsel and began an investigation.’” (*Id.* at p. 423.) After the defendant’s motion for summary judgment on statute of limitations grounds based on the existence of publicly available information on its website regarding the outcome of the blood and urine tests, the plaintiffs amended their complaint, alleging that the information on the website, while accurate, “did not provide plaintiffs or other investors with any reason to believe that Esterom was not absorbed or was not effective,” and was thus insufficient to trigger the statute of limitations. (*Id.* at p. 417.) The drug company asserted the sham pleading doctrine, contending the plaintiffs’ change in theory of liability from “you didn’t tell us about the tests,” to “okay, you did tell us about the tests, but you didn’t explain their significance” was an instance of sham pleading. The *Deveny* court noted that plaintiff’s counsel had offered an explanation for the change, namely, that while he had initially been unaware of information that was publicly available, after speaking with experts, he realized the data provided on defendant’s website was simply insufficient to put potential investors on notice of the drug’s problems. Thus, *Deveny* concluded this effort was sufficient to avoid the sham pleading doctrine, stating that “the sham pleading doctrine does not apply because [plaintiff’s counsel] offered a plausible explanation for the amendment, i.e., that he had erred in relying on the failure to disclose the blood and urine data as the basis for the complaint because further discovery and consultation with experts had shown that such data was inconclusive.” (*Id.* at p. 426.)

Here, the Court cannot conclude that the changes in Cross-Defendants’ theory of the case, and the facts supporting it, are necessarily contradictory and therefore governed by the sham pleading rule. Counsel for Cross-Defendant has explained that new facts were discovered during written discovery (Jahangiri Decl. at ¶ 4) and that the “[e]vidence does not support formation of an oral contract.” (*Id.* at ¶ 9.) Furthermore, it does not appear to the Court that the different allegations from the original Cross-Complaint to the Amended Cross-Complaint are an attempt to change the facts, as the plaintiff did in *Owens*. Instead, it appears that Cross-Complainants have refocused their allegations on a different subset of facts. As a consequence, the Court declines to deny the motion on this ground.

Conditions on Amendment

Finally, Cross-Defendants argue that if the Court grants the full amendment, it be conditioned on several terms. This request is not supported by statutory or other authority. The Court declines to condition the grant of this motion on the terms proposed by Cross-Defendants.

9. 9:00 AM CASE NUMBER: C24-01627

CASE NAME: KIMBERLY MENJIVAR VS. GENERAL MOTORS LLC

***HEARING ON MOTION IN RE: AWARD OF ATTORNEYS' FEES, COSTS, AND EXPENSES**

FILED BY: MENJIVAR, KIMBERLY

TENTATIVE RULING:

Before the Court is Plaintiff Kimberly Menjivar’s Motion for Attorneys’ Fees, Costs, and Expenses against Defendant General Motors, LLC. GM opposes the granting of fees and costs.

This is a Song-Beverly Consumer Warranty Act (lemon law) case. The case resolved when Menjivar

accepted GM's Code of Civil Procedure section 998 offer, which left the issue of fees and costs to the Court. Plaintiff seeks \$66,312.35 as fees and \$4,651.50 in costs.

As the prevailing party, pursuant both to Code of Civil Procedure section 998 and the terms of the 998 agreement itself, Menjivar is entitled to reasonable attorney's fees and costs pursuant to motion. Civil Code § 1794(d).

A court assessing a claim for fees under Civil Code section 1794, subdivision (d) is to use the lodestar as the start, to assess the reasonableness of the fee claim. (*Mikhaeilpoor v. BMW of North America* (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (*Ibid*; *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

On an initial pass, Plaintiff's fees may seem high for a Song-Beverly case that resolved less than 18 months after filing. Indeed, GM's brief makes a valiant attempt to cast this as a boilerplate case with boilerplate actions meriting low fees. Unfortunately for GM, their use of their standard opposition brief missed that there are important differences in this case.

As Menjivar explains, here there were discovery disputes that took considerable effort to resolve. The fact that the matter went to a discovery referee and then elevated from a discovery referee to the court indicates that this was not a typical matter, let alone a typical lemon law matter. GM appears to argue that Menjivar's Motion to Compel was unnecessary, apparently ignoring that the Court granted the entirety of the Motion. These were not "manufactured discovery disputes," and GM has no answer for Plaintiff's statement that the discovery produced was significant to the resolution of the matter. Plaintiff has further demonstrated reasonableness in reducing billing where it was potentially duplicative.

The Court has noticed that in its standard attorney fee oppositions, GM has a habit of characterizing pre-retention communications with potential clients as "the cost of doing business." That characterization is extremely inaccurate. A potential plaintiff and their potential counsel *must* as part of the retention decision, determine that a plaintiff has a valid claim and that the parties are a good fit. In many cases, that all happens before a retainer agreement is signed. That is not "the cost of

doing business,” whatever that phrase is intended to mean in a business where billing is the norm. That is part of attorney work; this statute compensates counsel for reasonable attorney work.

GM also has a habit of making the unsupported statement that Los Angeles attorneys have higher rates than Bay Area attorneys. The Court strongly doubts the accuracy of this statement; in any event it carries no proof. GM has not presented evidence of what *its own* counsel bills for this matter, not to mention what typical Contra Costa rates may be. Plaintiff has presented sufficient evidence to support the rates requested.

Although GM has argued that much of counsel’s work was “templated,” Plaintiff has rebutted that argument in this matter by showing the necessary unique work performed. For each area of purported excessive, duplicative, or unnecessary work, the Court has reviewed the billing entries and arguments related to those entries. The Court appreciates and agrees with the adjustments Menjivar has made on reply, and grants the full amount of fees requested.

GM also objects to the costs request because there was no memorandum of costs. The failure of Menjivar to file a Memorandum of Costs is inconsistent with California Rule of Court 3.1700. Menjivar responds that the section 998 offer specifically anticipated the filing of a motion for costs. (Ex. A ¶ 3 (“[A]ttorney’ fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion.”).) Given this language, the Court finds that the use of a single motion for fees *and* costs is appropriate. The court will grant the full costs requested.

10. 9:00 AM CASE NUMBER: C24-02943

CASE NAME: DANIEL VILLANUEVA VS. MANCINI'S SLEEPWORLD, INC.

***HEARING ON MOTION IN RE: (1) MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT AND (2) MOTION FOR ATTORNEYS' FEES, COSTS, AND A CLASS REPRESENTATIVE ENHANCEMENT PAYMENT.**

FILED BY:

TENTATIVE RULING:

Plaintiff Daniel Villanueva moves for final approval of his class action and PAGA settlement with defendant Mancini’s Sleepworld, Inc.. The Court granted preliminary approval on May 21, 2026.

A. Background and Settlement Terms

The original complaint was filed October 31, 2024, raising claims under PAGA and a class action on behalf of non-exempt employees alleging that defendant violated the Labor Code in various ways, primarily focused on the allegation that defendant failed to pay class members for all hours worked.

The settlement would create a gross settlement fund of \$300,000. The class representative payment to plaintiff would be \$10,000. Counsel’s attorney’s fees would be \$100,00 (one-third of the settlement). Litigation costs would not exceed \$20,000. The settlement administrator (Phoenix) would cap its costs at \$6,900. PAGA penalties would be \$80,000, resulting in a payment of \$52,000 to the